

Priti vs Kumar Pankaj on 5 April, 2024

Author: Rajiv Roy

Bench: Rajiv Roy

IN THE HIGH COURT OF JUDICATURE AT PATNA

Miscellaneous Jurisdiction Case No.133 of 2024

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Priti wife of Kumar Pankaj, D/O Ravindra Kumar, Resident of mohalla- B. Ganj, near Bhola Chips, Bhagwanpur, P.S.-Sadar, District-Muzaffarpur.

... .. Petit

Versus

Kumar Pankaj Son of Late Ashok Kumar Singh, Resident of Village- Narharpur P.S.- Marhaura, District -Saran, Pin Code No-841443.

... .. Opposite Party/s

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Appearance :

For the Petitioner/s : Mr. Nachiketa Jha, Adv.

For the Opposite Party/s : Mr.

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CORAM: HONOURABLE MR. JUSTICE RAJIV ROY

ORAL ORDER

2 05-04-2024

Heard the parties.

2. The present petition has been preferred for the following relief:

"(i) That, this application on behalf of the sole petitioner above named for transfer of Divorce Case No:-160/2022, filed by the Opposite party/Respondent U/S 13 of Hindu Marriage Act read with Section 7 (i) Explanation (a) of Family Court Act, 1984, pending In the Court of Learned Principal Judge, Family Court, Saran at Chhapra to the Principal Judge, Family Court, Muzaffarpur, is directed in the following circumstances."

3. Issue notice to the sole opposite party through both processes i.e. ordinary as well as registered cover with A/D for Patna High Court MJC No.133 of 2024(2) dt.05-04-2024 which requisities etc. must be filed within a period of two weeks failing which the application shall stand rejected without further reference to the Bench.

4. In case, the order passed is not complied and the matter accordingly stands dismissed, subsequently, the same e posted under the heading 'To be Mentioned' alongwith 'Tied Up' matters before the Bench on the 'TIED UP' day.

5. In the meantime, let no coercive steps be taken against the petitioner in connection with Divorce Case No. 160 of 2022, pending in the Court of learned Principal Judge, Family Court, Saran at Chhapra.

6. List this case after eight weeks.

(Rajiv Roy, J) anuradha/-

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